

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Squad #10	CCRB Case #: 201503619	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/01/2015 11:20 PM	Location of Incident: Seaside Wildlife Nature Park - Nelson Avenue and Tennyson Drive	18 Mo. SOL 11/1/2016	Precinct: 122		
Date/Time CV Reported Sun, 05/03/2015 11:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/07/2015 1:37 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Ricardo Cuenca	27842	945632	122 PCT
2. POM Vincent Gambino	08679	951754	122 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Albert Cabello	02759	938140	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Ricardo Cuenca	Abuse: PO Ricardo Cuenca frisked § 87(2)(b)	A . Unsubstantiated
B . POM Ricardo Cuenca	Abuse: PO Ricardo Cuenca searched § 87(2)(b)	B . Unsubstantiated
C . POM Ricardo Cuenca	Discourtesy: PO Ricardo Cuenca spoke rudely to § 87(2)(b) and § 87(2)(b)	C . Unsubstantiated
D . POM Ricardo Cuenca	Abuse: PO Ricardo Cuenca threatened to arrest § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated
E . POM Ricardo Cuenca	Abuse: PO Ricardo Cuenca refused to provide his name to § 87(2)(b)	E . Unfounded
§ 87(4-b) § 87(2)(g)		

Case Summary

On May 1, 2015, at approximately 11:20 p.m. § 87(2)(b) and § 87(2)(b) were inside Seaside Wildlife Nature Park, located at Nelson Avenue and Tennyson Drive in Staten Island. § 87(2)(b) and § 87(2)(b) were approached by PO Ricardo Cuenca and PO Vincent Gambino for being inside the park after dusk. PO Cuenca allegedly frisked and searched § 87(2)(b) and searched inside § 87(2)(b)'s backpack, where he discovered an unopened beer can and a utility knife (**Allegation A, Allegation B**). At this time, § 87(2)(b) called his mother, § 87(2)(b) and requested for her to come to the location. § 87(2)(b) walked to the location, and arrived approximately 10 minutes after § 87(2)(b)'s call. § 87(2)(b) and § 87(2)(b) alleged that PO Cuenca made numerous threats of arrest towards them and discourteous statements involving the word “fuck” (**Allegation C, Allegation D**). § 87(2)(b) was handcuffed by PO Cuenca and placed inside the police vehicle, and § 87(2)(b) asked PO Cuenca for his name and shield number. PO Cuenca allegedly told § 87(2)(b) his name was “Bienco” and provided a shield number of 27842 (**Allegation E**). § 87(2)(b) and § 87(2)(b) were both issued summonses for § 87(2)(b). § 87(2)(b) was also issued summonses for § 87(2)(b). § 87(2)(b) was transported to the 122nd precinct stationhouse, where he was released with the three summonses he received.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) expressed her desire to file a lawsuit about the incident, thereby making this complaint unsuitable for mediation.
- As of June 2, 2015, neither § 87(2)(b) nor § 87(2)(b) have filed a Notice of Claim with the NYC Comptroller's Office (Board Review 1).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and the first CCRB complaint involving § 87(2)(b) (Board Review 2).
- PO Cuenca has been a member of service for 7 years, and has had 4 prior CCRB complaints filed against him, involving 7 allegations. In CCRB case 200815472, a discourtesy allegation was closed as unsubstantiated. In CCRB case 201303075, a vehicle search allegation was substantiated and a threat of force and discourtesy allegation were unsubstantiated. The CCRB recommended charges for the substantiated vehicle search allegation, and the NYPD disposition is currently unavailable. In CCRB case 201307497, a physical force allegation was closed as complainant uncooperative. In CCRB case 201404447, a physical force allegation was closed as unsubstantiated. § 87(2)(g)

Attempts to Contact Witnesses

- Between June 4, 2015 and June 24, 2015, seven calls were placed to § 87(2)(b)'s cellphone, and five calls were placed to § 87(2)(b)'s home phone. Despite providing a brief phone statement to the CCRB on June 16, 2015, § 87(2)(b) has been unresponsive to subsequent contact attempts to schedule an in-person interview. Letters were sent to § 87(2)(b) on May 22, 2015, and May 29, 2015, which have not been returned to the CCRB by the U.S. Postal Service.

- In a phone call with § 87(2)(b)'s father, § 87(2)(b) on June 4, 2014, § 87(2)(b) confirmed that he did not witness any FADO allegations, and therefore was not scheduled for an in-person statement (Board Review 3).

Findings and Recommendations

Explanation of Subject Officer Identification

PO Cuenca and PO Gambino acknowledged interacting with § 87(2)(b) and § 87(2)(b) during the incident.

Allegations not pleaded

- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]

Allegation A – PO Ricardo Cuenca frisked § 87(2)(b)

Allegation B – PO Ricardo Cuenca searched § 87(2)(b)

§ 87(2)(g) [REDACTED]

In his CCRB statement, § 87(2)(b) stated that after he provided his identification to PO Cuenca, PO Cuenca allegedly frisked and searched § 87(2)(b). PO Cuenca frisked § 87(2)(b) along his legs, and then searched inside the pockets of his jogging pants. After searching § 87(2)(b)'s jogging pants, PO Cuenca allegedly searched inside the pockets of § 87(2)(b)'s shorts, which § 87(2)(b) wore underneath his jogging pants. After searching § 87(2)(b)'s shorts, PO Cuenca looked between § 87(2)(b)'s shorts and his boxers. § 87(2)(b)'s skin was not exposed, and PO Cuenca did not look inside § 87(2)(b)'s boxers. After allegedly frisking and searching § 87(2)(b), PO Cuenca allegedly pulled § 87(2)(b)'s backpack off his shoulder, opened it, and searched inside of it. Inside § 87(2)(b)'s backpack, PO Cuenca allegedly discovered an unopened can of Budweiser beer and a small utility knife.

In his CCRB testimony, PO Cuenca testified that after he informed § 87(2)(b) and § 87(2)(b) that they are not supposed to be in the park after dark, he noticed § 87(2)(b) had a backpack with him. PO Cuenca was suspicious of the backpack because it was 11:20 p.m. and

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

Investigator:	_____	_____	_____
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date